



WHITESTONE PARTNERS

MARINE MAINTENANCE PLAN

NEW DEALER ENROLLMENT FORM

DEALERSHIP INFORMATION			
LEGAL BUSINESS NAME:		DBA IF APPLICABLE:	
BUSINESS ADDRESS:			
CITY:	STATE:	ZIP:	PHONE #:
EIN:		DEALER NUMBER:	
BRANDS CARRIED:			
AUTHORIZED DEALERSHIP CONTACTS:			
Please list all authorized service and sales staff, including Finance Managers, Service Managers, Service Writers, Warranty Writers, and Business Managers. Only individuals listed below are authorized to execute Customer Agreements, submit Claims, or bind Dealer under this Agreement. Dealer shall promptly notify Provider in writing of any additions, removals, or changes to authorized personnel.			
NAME: 1	POSITION:	NAME: 6	POSITION:
2		7	
3		8	
4		9	
5		10	
ACCOUNTING INFORMATION			
ACCOUNTS RECEIVABLE CONTACT:			
PHONE NUMBER:		EMAIL:	
ACCOUNT NUMBER:		ROUTING NUMBER:	
DEALER PRINCIPAL / AUTHORIZED SIGNATORY			
NAME:	TITLE:	EMAIL:	PHONE #:
The individual signing this Agreement on behalf of Dealer represents and warrants that he or she has the authority to bind Dealer to the terms of this Agreement and to authorize the ACH transactions described herein.			
INSURANCE INFORMATION			
GENERAL LIABILITY CARRIER:	POLICY NUMBER:	EXPIRATION DATE:	
GARAGE LIABILITY CARRIER (IF APPLICABLE):	POLICY NUMBER:	EXPIRATION DATE:	
WORKER'S COMPENSATION CARRIER:	POLICY NUMBER:	EXPIRATION DATE:	
Dealer agrees to provide Provider with certificates of insurance upon request and to notify Provider in writing within ten (10) days of any material change, cancellation, or non-renewal of the insurance coverage identified above.			
SERVICE CAPABILITIES CERTIFICATION			
DEALER SERVICE CAPABILITIES: Dealer certifies that it maintains the following capabilities necessary to perform Covered Services under the Program:			
☐ Factory-trained or manufacturer-certified marine technicians on staff			
☐ Adequate facilities, equipment, and tools to perform all Covered Services			
☐ Access to OEM parts and fluids required for manufacturer-recommended maintenance			
☐ Ability to accurately record and verify engine hours using onboard engine systems or diagnostic equipment			

WHITESTONE PARTNERS – DEALER PARTICIPATION AGREEMENT

This Dealer Participation Agreement ("Agreement") is entered into as of _____ ("Effective Date") by and between Whitestone Partners, LLC, a Utah limited liability company ("Provider"), and _____ ("Dealer").

ACH AUTHORIZATION

Dealer authorizes Provider to initiate electronic ACH credits and debits to the business bank account designated by Dealer for purposes including, without limitation, dealer compensation, Claims reimbursement, cancellation chargebacks, payment corrections, administrative fees, reconciliation adjustments, offsets, and other amounts arising under this Agreement. Dealer certifies that all banking information provided is accurate, current, and authorized for business use and agrees to promptly notify Provider in writing of any banking changes no less than [ten (10)] business days prior to the effective date of such change. Dealer acknowledges that Provider shall not be liable for any loss, delay, or failed transaction resulting from Dealer's failure to provide timely notice of banking changes. This authorization shall remain in full force and effect until Provider receives written notice of revocation from Dealer and has had a commercially reasonable period to act upon such notice, and shall survive any individual transaction or series of transactions.

1. DEFINITIONS

"Program" means the Whitestone Marine Maintenance Plan. "Customer Agreement" means the maintenance agreement, including the Enrollment Form and coverage document, issued to a customer in connection with the Program. "Covered Services" means only those services expressly authorized under the applicable Customer Agreement, this Agreement, and Provider guidelines. "Program Cost" means the wholesale amount owed by Dealer to Provider for participation in the Program, as established by Provider from time to time. "Dealer Margin" means the difference between the retail price charged to the customer and the applicable Program Cost. "Claims" means requests for reimbursement submitted by Dealer under the Program for Covered Services performed. "Annual Hour Cap" means the maximum engine hours per twelve-month period per engine, as set forth in the applicable Customer Agreement. "Service Rate Schedule" means Provider's then-current schedule of rates used to calculate the reasonable value of Covered Services rendered, as maintained by Provider and referenced in the applicable Customer Agreement. "Pre-Enrollment Inspection" means the inspection of a used vessel required prior to activation of coverage under a Customer Agreement, as described in the applicable Customer Agreement and Provider procedures.

2. PURPOSE

This Agreement establishes the terms under which Dealer is authorized to market, sell, and perform Covered Services under the Program.

3. RELATIONSHIP OF PARTIES

Dealer is an independent contractor and not an employee, agent, partner, joint venturer, or representative of Provider. Dealer has no authority to bind Provider except as expressly authorized herein. Nothing in this Agreement creates an exclusive relationship between the parties. Dealer is solely responsible for its employees, subcontractors, operations, and compliance with applicable law.

4. DEALER AUTHORIZATION & RESPONSIBILITIES

Provider authorizes Dealer to market and sell the Program and perform Covered Services in accordance with this Agreement, all applicable Customer Agreements, and Provider procedures. Dealer shall maintain all required licenses, permits, insurance, qualified personnel, and operational capabilities necessary to perform its obligations under this Agreement and applicable law.

Dealer agrees to market and present the Program accurately, ethically, and in compliance with all applicable laws and Provider procedures and shall not make any unauthorized representation regarding coverage, benefits, exclusions, claims approval, Program terms, or the nature of the Program as insurance or a warranty. Dealer shall ensure that all Customer Agreements and Enrollment Forms are properly, accurately, and completely executed and that all required disclosures, certifications, and acknowledgments are obtained from customers at the time of sale, including without limitation: (a) the Vessel Condition Certification; (b) the Commercial Use Exclusion Acknowledgment; (c) the Fraud and Misrepresentation Certification; (d) the Binding Arbitration Acknowledgment and all required Owner initials; (e) the Electronic Delivery Consent (if applicable); and (f) for used vessels, the Pre-Enrollment Inspection, completed and accepted prior to activation of coverage.

Dealer shall ensure all employees, finance personnel, sales representatives, and agents involved in selling or administering the Program comply with applicable laws, disclosure requirements, and Provider procedures. Dealer shall be responsible for any misrepresentation, deceptive sales practice, omission, or unauthorized representation made by its personnel, and Provider shall have no liability for the same.

Dealer shall perform all Covered Services in a professional and workmanlike manner consistent with manufacturer recommendations, industry standards, and Provider requirements. Dealer shall accurately document engine hours (including Engine Hours at Enrollment for each Customer Agreement), services performed, service dates, parts used, customer information, and related records. Dealer shall maintain all documentation in a manner sufficient to support Claims submissions and Provider audit requirements.

Dealer shall verify engine hours at the time of each service event using onboard engine systems, diagnostic equipment, or other commercially reasonable methods approved by Provider. If engine hour data is unavailable, inaccurate, altered, or disputed, Dealer shall promptly notify Provider prior to performing Covered Services.

Dealer may utilize qualified and properly insured subcontractors to perform Covered Services only with prior written approval of Provider. Dealer shall remain fully responsible for all workmanship, compliance, documentation, and obligations under this Agreement regardless of whether services are performed by Dealer's employees or approved subcontractors.

5. FINANCIAL TERMS

Provider shall establish Program Cost pricing and may modify such pricing upon [thirty (30)] days' written notice to Dealer. Dealer may establish its own retail selling price unless otherwise prohibited by law or Provider policy.

Dealer compensation consists solely of the Dealer Margin retained from the sale of the Program. No additional fees, commissions, or compensation shall be paid by Provider to Dealer unless expressly agreed in writing.

Program Cost amounts become due and payable upon Dealer's receipt of customer funds or execution of the applicable Customer Agreement, whichever occurs first. Dealer shall remit all Program Cost amounts owed to Provider no later than the weekly settlement deadline established by Provider. Late remittances shall be subject to a late payment charge of [1.5]% per month, or the maximum rate permitted by applicable law, whichever is less, calculated from the date such amount was due.

Dealer acknowledges that Program Cost amounts collected in connection with Program sales are contractually owed to Provider and shall maintain commercially reasonable accounting controls relating to such funds pending remittance. Dealer shall not commingle Program Cost amounts with Dealer's general operating funds and shall maintain such amounts in a segregated account or otherwise in a manner reasonably sufficient to ensure prompt remittance to Provider.

Provider may require ACH payments, electronic settlement procedures, reconciliation reporting, portal usage, or additional accounting documentation reasonably necessary to administer the Program. Dealer is responsible for maintaining the confidentiality and security of portal credentials and account access and shall be liable for any unauthorized transactions resulting from Dealer's failure to safeguard such credentials.

Provider may offset future payments or invoice Dealer for cancellations, unearned Dealer Margin, chargebacks, overpayments, duplicate payments, denied Claims, failed customer financing transactions, returned payments, fraudulent transactions, administrative fees, improperly submitted contracts or Claims, Pre-Enrollment Inspection deficiencies, or other amounts owed under this Agreement. Provider shall provide Dealer with reasonable documentation of any offset or chargeback upon request.

Provider may suspend Dealer participation, Claims processing, reimbursements, or Dealer authority to sell new Program agreements for nonpayment, suspected fraud, excessive chargebacks, material breach, operational risk, or regulatory concerns. Provider shall provide Dealer with written notice of any suspension and the basis therefor within [five (5)] business days of such suspension.

Dealer is solely responsible for all taxes arising from Dealer Margin, reimbursements, or payments received under this Agreement.

6. CLAIMS ADMINISTRATION

Dealer shall submit all Claims in accordance with Provider procedures and Program requirements and shall provide all documentation reasonably requested by Provider, including repair orders, invoices, technician notes, engine hour verification (including verification against the Annual Hour Cap), customer information, proof of payment, and supporting service records. Dealer shall separately identify Covered Services and non-covered customer-pay services on all repair orders and invoices submitted to Provider.

All Claims are subject to Provider review, verification, adjustment, and approval. Submission of a Claim does not guarantee approval or reimbursement. Provider may deny, adjust, delay, or request additional information regarding any Claim that is incomplete, inaccurate, inconsistent, exceeds reasonable service intervals, exceeds the Annual Hour Cap or Aggregate Service Cap under the applicable Customer Agreement, violates Program requirements, involves services on a vessel used primarily for commercial purposes, or otherwise fails to comply with applicable procedures.

Approved Claims reimbursements shall generally be paid electronically via ACH within [fifteen (15)] business days following approval and receipt of all required documentation. Provider's obligation to reimburse Dealer for Covered Services is limited to the rates and amounts established under Provider's then-current Service Rate Schedule, regardless of the retail rates charged by Dealer to the customer.

Provider may suspend Claims processing or reimbursement activity upon reasonable suspicion of fraud, altered records, inflated invoices, duplicate submissions, unauthorized services, false documentation, or other improper conduct. Dealer shall fully cooperate with any investigation, and failure to cooperate shall constitute grounds for immediate termination of this Agreement.

Provider may establish commercially reasonable reserve, holdback, deferred payment, audit review, fraud prevention, or reconciliation procedures relating to cancellations, pending Claims, anticipated chargebacks, or operational risk management. Provider shall notify Dealer of any material changes to such procedures within a commercially reasonable time.

All Claims must be submitted to Provider within [thirty (30)] days of the date on which the applicable Covered Service was performed. Claims submitted after the submission deadline may be denied at Provider's sole discretion. Provider may grant extensions of the submission deadline upon written request by Dealer demonstrating good cause.

7. CUSTOMER RELATIONSHIP

Dealer acknowledges that the Customer Agreement is between the customer and Provider and that Provider is the legal obligor under the Program. Dealer shall not modify Program terms or make unauthorized promises or representations.

Customer disputes relating to service quality or workmanship shall be handled by Dealer. Questions relating to Program coverage or contract administration shall be handled by Provider.

8. CANCELLATIONS & REFUNDS

Customer cancellations shall be governed exclusively by the applicable Customer Agreement, including the Cancellation and Refund Policy and Service Rate Schedule contained therein, and applicable law. Dealer acknowledges that Provider is solely responsible for administering customer refunds in accordance with the Customer Agreement.

Dealer acknowledges that cancellations may result in chargebacks or reductions of unearned Dealer Margin calculated on a pro-rata basis, less Claims paid and applicable administrative fees, and calculated using the Service Rate Schedule methodology established in the applicable Customer Agreement. Dealer agrees to promptly satisfy any resulting balance owed to Provider, and Provider may offset such amounts against future payments in accordance with the Financial Terms of this Agreement.

Dealer shall promptly notify Provider in writing of any customer cancellation request received by Dealer and shall not independently process, administer, or promise any cancellation or refund to a customer. All cancellation processing and refund calculations shall be performed exclusively by Provider or its designated administrator.

9. ADMINISTRATIVE FEES

Provider may assess commercially reasonable administrative fees relating to cancellations, chargebacks, reconciliation activity, returned payments, or improper submissions. Such fees shall not be charged directly to customers unless permitted by applicable law and disclosed in the applicable Customer Agreement.

10. AUDIT & RECORD RETENTION

Provider may conduct remote or on-site audits of Dealer records, Claims, settlement activity, customer documentation, and Program compliance upon reasonable notice. Dealer shall cooperate fully and provide all requested documentation.

Dealer shall maintain all Program-related records for a minimum of five (5) years following termination or expiration of this Agreement or longer if required by applicable law.

11. COMPLIANCE WITH LAW

Dealer shall comply with all applicable federal, state, and local laws, consumer protection laws, advertising laws, service contract regulations, licensing requirements, and disclosure obligations relating to the marketing, sale,

administration, and performance of the Program.

12. INSURANCE

Dealer shall maintain commercially reasonable insurance coverage including general liability, garage liability where applicable, and workers' compensation coverage where required by law and shall provide proof of insurance upon request.

13. TERM & TERMINATION

This Agreement shall commence on the Effective Date and shall remain in effect until terminated by either party. Either party may terminate this Agreement without cause upon [sixty (60)] days' written notice to the other party. Provider may terminate this Agreement immediately upon written notice for fraud, material breach, nonpayment, regulatory concerns, insolvency, bankruptcy, material misrepresentation, violation of applicable law, or unlawful conduct.

Upon termination for any reason: (a) Dealer shall immediately cease marketing and selling the Program; (b) existing Customer Agreements shall remain in force pursuant to their terms, and Dealer shall continue to perform Covered Services under existing Customer Agreements unless Provider designates an alternative service facility; (c) Dealer shall promptly remit all outstanding Program Cost amounts owed to Provider; (d) Provider may offset any amounts owed to Dealer against any amounts owed by Dealer to Provider; and (e) Dealer shall cooperate with Provider in the orderly transition of servicing obligations for existing Customer Agreements.

Dealer shall promptly notify Provider in writing of insolvency, bankruptcy filings, cessation of operations, material asset sales, change of ownership or control, loss of required licenses or insurance, or material financial impairment.

14. INDEMNIFICATION

Dealer shall indemnify, defend, and hold harmless Provider, its affiliates, officers, directors, employees, insurers, administrators, and representatives from and against any and all claims, damages, liabilities, losses, penalties, fines, costs, or expenses (including reasonable attorneys' fees and costs of defense) arising out of or related to: (a) Dealer's performance or failure to perform Covered Services; (b) the acts or omissions of Dealer's employees, agents, or subcontractors; (c) any misrepresentation, deceptive sales practice, unauthorized representation, or omission by Dealer or its personnel in connection with the marketing, sale, or administration of the Program; (d) Dealer's failure to obtain required customer certifications, acknowledgments, disclosures, or Pre-Enrollment Inspections; (e) Dealer's failure to comply with applicable laws, licensing requirements, or regulatory obligations; (f) Dealer's breach of this Agreement; (g) any claim by a customer arising from Dealer's workmanship, service quality, or customer interactions; or (h) Dealer's failure to properly verify, document, or report engine hours or service records; except, in each case, to the extent such claim is directly and proximately caused by the gross negligence or willful misconduct of Provider.

Provider shall indemnify, defend, and hold harmless Dealer from and against any claims, damages, liabilities, losses, costs, or expenses (including reasonable attorneys' fees) arising out of or related to Provider's breach of its obligations under this Agreement or Provider's gross negligence or willful misconduct in the administration of the Program, except to the extent caused by Dealer's acts or omissions.

15. LIMITATION OF LIABILITY

Provider shall not be liable for Dealer workmanship, service quality, lost profits, indirect damages, incidental damages, consequential damages, punitive damages, or customer dissatisfaction relating to Dealer operations. Provider's aggregate liability under this Agreement shall not exceed the total amount of Claims reimbursements actually paid by Provider to Dealer during the twelve (12) months immediately preceding the event giving rise to the claim.

Dealer's aggregate liability under this Agreement, exclusive of indemnification obligations arising from third-party claims, shall not exceed the total amount of Dealer Margin retained by Dealer and Claims reimbursements received by Dealer during the twelve (12) months immediately preceding the event giving rise to the claim.

Nothing in this Section shall limit either party's liability for fraud, willful misconduct, gross negligence, or indemnification obligations under Section 14.

16. CONFIDENTIALITY

Dealer shall maintain the confidentiality of Provider pricing, Program Cost schedules, operational procedures, business practices, Program materials, claims procedures, customer information, and non-public information ("Confidential Information") and shall not disclose such information except as necessary to perform obligations under this Agreement or as required by applicable law. Dealer shall limit access to Confidential Information to those employees and agents who have a need to know and shall ensure that such individuals are bound by obligations of confidentiality no less protective than those set forth herein.

Upon termination or expiration of this Agreement, Dealer shall promptly return or destroy all Confidential Information in its possession, except as required to be retained under the Record Retention provisions of this Agreement or applicable law.

Dealer acknowledges that customer personal information collected in connection with the Program is subject to applicable privacy laws and Provider's Privacy Policy. Dealer shall not use customer personal information for any purpose other than the performance of its obligations under this Agreement and shall not sell, share, or disclose customer personal information to any third party except as necessary to perform Covered Services or as required by applicable law.

17. DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Utah, without regard to its conflict of laws principles, unless otherwise required by applicable law. Any dispute arising under or in connection with this Agreement shall be resolved exclusively in the state or federal courts located in Salt Lake County, Utah, and each party irrevocably consents to the personal jurisdiction and venue of such courts.

Prior to initiating any legal action, the parties agree to make a good faith effort to resolve disputes through informal negotiation for a period of not less than [thirty (30)] days following written notice of the dispute. The prevailing party in any legal action arising from this Agreement shall be entitled to recover reasonable attorneys' fees, costs, and expenses incurred in connection with such action.

18. GENERAL PROVISIONS

This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions, understandings, or agreements relating to the subject matter herein. This Agreement may not be amended or modified except by a written instrument signed by both parties. Failure of either party to enforce any provision shall not constitute waiver of such provision or any other provision. If any provision of this Agreement is determined unenforceable, the remaining provisions shall remain in full force and effect. Neither party shall be liable for delays caused by events beyond reasonable control, including acts of God, natural disasters, labor disputes, governmental actions, utility failures, epidemics, pandemics, or other force majeure events. Electronic signatures, electronic records, and electronically transmitted documents shall have the same force and effect as original signed documents, in accordance with the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), 15 U.S.C. § 7001 et seq., and any applicable state electronic transactions laws.

The provisions relating to payment obligations, chargebacks, audit rights, record retention, confidentiality, indemnification, limitation of liability, dispute resolution, non-solicitation, and any obligations intended by their nature to survive termination shall survive termination or expiration of this Agreement.

During the term of this Agreement and for a period of [one (1) year] following termination, Dealer shall not directly or indirectly solicit, market, or offer to any customer who purchased a Customer Agreement through Dealer any competing prepaid maintenance plan, service contract, or substantially similar product that would replace, duplicate, or compete with the Program, except with Provider's prior written consent.

Dealer may not assign, transfer, or delegate this Agreement or any rights or obligations hereunder without Provider's prior written consent. Any attempted assignment without such consent shall be void. Provider may assign this Agreement, including its rights and obligations, without Dealer's consent upon written notice to Dealer.

All notices required or permitted under this Agreement shall be in writing and shall be deemed delivered when: (a) delivered personally; (b) sent by certified mail, return receipt requested, postage prepaid; (c) sent by nationally recognized overnight courier; or (d) sent by email to the email address provided in this Enrollment Form, with confirmation of receipt. Notices to Provider shall be sent to: Whitestone Partners, LLC, P.O. Box 221, Draper, Utah 84020, support@whitestone-partners.com. Notices to Dealer shall be sent to the address and email provided in the Dealership Information section of this Enrollment Form, or to such other address as either party may designate in writing.

SIGNATURES

WHITESTONE PARTNERS, LLC

SIGNATURE: _____

PRINTED NAME: _____

TITLE: _____

DATE: _____

DEALER: _____

SIGNATURE: _____

PRINTED NAME: _____

TITLE: _____

DATE: _____

The individual signing on behalf of Dealer represents and warrants that he or she is duly authorized to execute this Agreement and bind Dealer to the terms and conditions set forth herein.